



EMPLOYMENT-BASED • EB-2 / NIW

EB-2 Visa Guide

Second Preference — Advanced Degree, Exceptional Ability, National Interest Waiver

Complete guide to EB-2 — covers Advanced Degree (EB-2A), Exceptional Ability (EB-2B), and the National Interest Waiver. Includes the Dhanasar Three-Prong Test, PERM process, and filing strategy.

Prepared by ImmigrationIQ

immigrationiq.us | contact@immigrationiq.us

WHAT'S INSIDE THIS KIT:

✓ EB-2A / EB-2B / NIW overview ✓ Eligibility for each subcategory ✓ Dhanasar Three-Prong Test (NIW) ✓ PERM Labor Certification ✓ Step-by-step process ✓ Required forms & documents ✓ Fees & timeline ✓ Visa Bulletin / country waits ✓ Common mistakes ✓ NIW vs PERM strategy

All USCIS forms: uscis.gov/forms | Tools: immigrationiq.us

1. EB-2 Categories Overview

EB-2 is the second-preference employment-based immigrant visa for foreign nationals with advanced degrees or exceptional ability. Most EB-2 cases require a U.S. employer and PERM Labor Certification — UNLESS you qualify for a National Interest Waiver (NIW), which lets you self-petition without an employer.

EB-2A (Advanced Degree)	EB-2B (Exceptional Ability)	EB-2 NIW (National Interest Waiver)
U.S. Master's or higher (or Bachelor's + 5 yrs progressive experience)	Sciences, arts, business — meet 3 of 7 criteria	Self-petition; waive job offer + PERM
Job offer required	Job offer required	No job offer required
PERM Labor Cert required	PERM Labor Cert required	PERM NOT required
Standard EB-2 wait	Standard EB-2 wait	Standard EB-2 wait
I-140 by employer	I-140 by employer	I-140 self-petitioned

TIP: NIW is the most popular EB-2 path for skilled professionals because you don't need an employer or PERM. The Dhanasar standard (2016) made NIW more accessible than the older NYSDOT framework.

2. EB-2A: Advanced Degree — Eligibility

- U.S. Master's degree or higher (or foreign equivalent), OR
- U.S. Bachelor's + 5 years of progressive post-baccalaureate experience in your field
- Job offer requires a position needing the advanced degree
- Employer must obtain approved PERM Labor Certification before filing I-140

Documenting the 'Progressive Experience' Path

- Progressive = increasing responsibility, complexity, and skill level over time
- Experience must be in a specialty occupation related to the position
- Document with employer letters confirming title, dates, duties, and that it was progressive
- Bachelor's must be from accredited institution; foreign degrees need credential evaluation

3. EB-2B: Exceptional Ability — Eligibility

Exceptional ability means a degree of expertise significantly above ordinary in the sciences, arts, or business. Must meet at least 3 of 7 criteria:

1. Official academic record: Degree, diploma, certificate, or similar showing your degree or other recognition of competence in your field.

2. **Letters from current/former employers:** Documenting at least 10 years of full-time experience in your occupation.
3. **License or certification:** Official license or certification to practice your profession.
4. **High salary or remuneration:** Evidence you have commanded a salary indicating exceptional ability.
5. **Membership in professional associations:** Membership in professional associations in your field.
6. **Recognition for achievements:** Recognition for achievements and significant contributions to your industry/field by peers, government, professional or business organizations.
7. **Comparable evidence:** Other evidence of exceptional ability if the above 6 don't readily apply.

4. National Interest Waiver (NIW) — Dhanasar Test

NIW lets you skip both the job offer and PERM. You must first qualify as either Advanced Degree (EB-2A) or Exceptional Ability (EB-2B), then meet the THREE-PRONG Dhanasar test (Matter of Dhanasar, 2016):

Prong 1: Substantial Merit and National Importance

Your proposed endeavor must have BOTH substantial merit AND national importance. Merit can come from any field — business, entrepreneurship, science, technology, culture, health, education. National importance considers the broader impact of the work, not just its location.

- What problem does your work solve?
- How does it benefit the U.S. economy, public health, technology, or culture?
- Document with industry reports, government priorities, expert letters

Prong 2: Well-Positioned to Advance the Endeavor

- Education, skills, knowledge, and record of success in similar efforts
- Plans to develop the endeavor (business plan, research plan)
- Progress toward achievement (publications, patents, prototypes)
- Interest of relevant parties (investors, customers, collaborators)

Prong 3: Beneficial to Waive the Job Offer + PERM

- Impractical to obtain a labor certification given your unique skills
- U.S. would benefit from your contributions even if other workers are available
- Urgency or unique circumstances that make PERM impractical

TIP: Strong NIW petitions tell a compelling story: 'My work [X] solves national problem [Y] and I am uniquely positioned because [Z].' Use 5-8 expert opinion letters from independent experts to support each prong.

5. PERM Labor Certification (non-NIW EB-2)

If you're not pursuing NIW, your employer must complete PERM through the Department of Labor BEFORE filing I-140. PERM proves no qualified U.S. workers are available for the position.

1. **Prevailing Wage Determination (PWD):** Employer requests DOL determine prevailing wage for the position. 2-6 months.

- 2. Recruitment Campaign:** Employer runs newspaper ads, internal posting, state job board posting, and 3 of 10 additional steps for 30+ days.
 - 3. File ETA-9089:** After 30-day recruitment + waiting period, employer files PERM application electronically with DOL.
 - 4. DOL Adjudication:** Standard processing: 6-12 months. Audits add 6-12 months. Approval = Labor Certification issued.
 - 5. File I-140:** Employer files I-140 within 180 days of PERM approval. Certification becomes void after 180 days.
- **PERM is employer-driven and detailed. Errors in recruitment can void the case. Most employers use immigration counsel for PERM.**

6. Step-by-Step Filing Process

- 1. Determine Path: NIW or Standard EB-2:** If your work has clear national importance, NIW saves time and money. Otherwise, work with employer on PERM.
- 2. (NIW) Build Evidence Portfolio:** Expert letters, publications, citations, awards, business plans, evidence of national importance.
- 3. (Standard EB-2) Complete PERM:** Employer-driven process — typically 6-15 months.
- 4. File I-140:** NIW: self-petitioned. Standard: employer files. Filing fee: \$715.
- 5. Optional: Premium Processing:** \$2,805 for 15-business-day USCIS response.
- 6. Wait for Visa Number (per Visa Bulletin):** Most countries: 1-3 year wait. India: 8-15+ years. China: 3-5 years.
- 7. File I-485 (in U.S.) or DS-260 (consular):** Concurrent I-140 + I-485 allowed if priority date is current.
- 8. Receive Green Card:** 10-year permanent green card. No conditions.

7. Required Documents

Personal & Identity

- Valid passport (biographic page)
- Birth certificate with certified English translation
- Marriage/divorce certificates (if applicable)
- Detailed CV/resume with publications, presentations, projects
- Academic transcripts and diplomas (with credential evaluation if foreign)

EB-2A Advanced Degree Specific

- Master's diploma or Bachelor's + employer letters proving 5+ years progressive experience
- Detailed letters from each employer (title, dates, responsibilities, increase in seniority)
- Foreign degree credential evaluation by NACES-member service

NIW Specific

- Detailed personal statement explaining proposed endeavor
- Business or research plan
- 5-8 expert opinion letters (independent experts preferred)
- Evidence of national importance: industry reports, government documents, news
- Proof of being well-positioned: track record, citations, publications, awards, prototypes

8. Fees & Timeline

Item	Cost / Time
I-140 (Immigrant Petition)	\$715
I-140 Premium Processing (optional)	\$2,805 (15 business days)
I-485 (Adjustment of Status)	\$1,440
I-765 work permit (with I-485)	\$0 (included)
I-131 Advance Parole (with I-485)	\$0 (included)
DS-260 (consular processing)	\$325
PERM filing	\$0 (DOL fee), \$5,000-\$15,000 attorney + recruitment costs
I-140 standard processing	6-12 months
I-140 with Premium Processing	15 business days
I-485 timeline	8-14 months

9. Visa Bulletin & Country-Specific Waits

EB-2 has annual numerical limits per country. Heavy demand from India and China creates multi-year waits. Check the State Department Visa Bulletin monthly.

Country	Approximate EB-2 Wait
Most countries (Worldwide)	Currently 1-3 years
India	10-15+ years backlog
China	3-5 years
Mexico	1-3 years

Country	Approximate EB-2 Wait
Philippines	1-3 years

TIP: If you're from India, EB-2 NIW or downgrading from EB-2 to EB-3 can sometimes provide faster relief. Talk to an attorney before filing if from a heavily backlogged country.

10. Common Mistakes to Avoid

- Filing NIW with weak evidence of national importance — vague claims fail
- Not having credential evaluation for foreign degrees
- PERM recruitment violations (timing, ad content, response handling)
- Insufficient documentation of progressive experience under EB-2A
- Generic expert letters without specific knowledge of your work
- Choosing standard EB-2 + PERM when NIW is faster and cheaper
- Not maintaining job continuity during long visa wait (employer changes affect PERM)

YOUR IMMIGRATIONIQ TOOLKIT	
→ AI Chat Assistant	immigrationiq.us/chat
→ Case Status Tracker	immigrationiq.us/case-tracker
→ Visa Bulletin Dashboard	immigrationiq.us/visa-bulletin
→ USCIS Fee Calculator	immigrationiq.us/fee-calculator
→ Find Immigration Lawyers	immigrationiq.us/lawyers
→ Free Legal Aid Resources	immigrationiq.us/lawyers (Free Legal Aid tab)



ImmigrationIQ — immigrationiq.us

For informational purposes only. NOT legal advice. Laws change frequently. Verify at uscis.gov. Consult a licensed immigration attorney for your specific situation.